IN THE SUPREME COURT OF THE STATE OF WASHINGTON

STATE OF WASHINGTON, *Petitioner,* vs. SHAWN LAMAR BELL, *Respondent.*	)))))	No. 103077-1 PETITION FOR REVIEW

Court of Appeals No. 85684-7-I. Appeal from Pierce County Superior Court No. 19-1-00973-1, Honorable Stanley J. Rumbaugh.

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I. INTRODUCTION

Shawn Bell attacked the employees of two adult stores. He barged into the first store wearing a Halloween mask, grabbed a terrified worker by the throat, and stole cash and sex toys. Just days later, he raped an employee of the second store while wearing the same mask. A jury convicted Bell of rape, robbery, assault, and burglary.

The Court of Appeals reversed those convictions for the sole reason that the prosecutor did not give formal notice of an intent to exercise a peremptory challenge based on a juror's inattention. But the juror admitted his inattention during voir dire, and the trial judge verified the behavior. Any error in failing to strictly adhere to the procedure of GR 37(i)-where the challenged juror had already provided notice of his inattention was harmless.

Under this Court's precedent, harmless error analysis applies when an alleged error involves violation of a court rule. The Court of Appeals, however, declined to engage in harmless

error analysis and instead applied automatic reversal-which is reserved for the most egregious constitutional violations-to the alleged procedural error in this case. Automatic reversal is unwarranted when (1) a juror admits his inattention prior to the exercise of a peremptory challenge, (2) the trial court confirms this fact, and (3) an objective observer could not view race as a factor in the exercise of the strike. The Court of Appeals' expansion of automatic reversal to this rule-based harmless error warrants review. RAP 13.4(b)(1).

At a minimum, clarification is needed from this Court regarding whether an alleged procedural violation involving GR 3 7 requires automatic reversal where there is no substantive violation, i.e., an objective observer could not view race as a factor in the use of a peremptory challenge. A defendant's otherwise valid convictions should not be set aside, requiring rape and assault victims to relive their trauma and testify at yet another trial, when the defendant received a fair trial and any procedural misstep during jury selection was harmless. Leaving

this important issue unresolved will lead to inconsistent outcomes and the unnecessary reversal of criminal convictions in the lower courts. RAP 13.4(b)(4).

The Court of Appeals' opinion also shows no deference to the trial court's factual findings. This Court should clarify the standard of review for challenges under GR 3 7. RAP 13.4(b)(4).

II. IDENTITY OF PETITIONER

Petitioner, the State of Washington, respondent below, asks this Court to accept review of the Court of Appeals' decision reversing Bell's convictions and remanding for a new trial.

III. COURT OF APPEALS DECISION

The State asks this Court to grant review of the unpublished Court of Appeals decision filed on April 15, 2024, *inState v. Bell,* No. 85684-7-I. *See* Appendix 1-16. The Court of Appeals denied the State's motion for reconsideration of the

initial February 5, 2024, opinion but withdrew the opinion and filed a substitute opinion on April 15, 2024. Appx. 17.

IV. ISSUES PRESENTED FOR REVIEW

A. Should this Court grant review under RAP 13.4(b)(1), where automatic reversal for an alleged procedural violation of GR 37(i) involving notice of juror inattention, when the juror admitted inattention, conflicts with this Court's precedent subjecting alleged rule violations to harmless error analysis?

B. Should this Court grant review under RAP 13.4(b)(4) to clarify whether an alleged procedural violation involving GR 37 requires automatic reversal when there is no substantive violation such that an objective observer could not view race as a factor in the use of a peremptory challenge?

C. Should this Court grant review under RAP 13.4(b)(4) to clarify the standard of review for a trial court's factual findings under GR 37?

V. STATEMENT OF THE CASE

A. Bell Violently Attacked Store Employees Late at Night

While Wearing a Halloween Mask.

A large man in a distinctive Halloween mask targeted two adult stores within days of each other. He entered the first store seconds before it closed, grabbed an employee by the throat, and demanded she empty the cash registers into his bag. RP 822-26. He stole cash and an assortment of sex merchandise but was thwarted in his attempt to abduct one of the employees. RP 828- 30, 851-52, 856-58. He arrived at the second store after closing, was unable to enter, and raped one employee in front of the other. RP 948-54, 964-70, 1040-49. Both incidents were captured on surveillance video. Exhibits 100, 102.

Police identified Shawn Bell as the masked assailant. *See* RP 1352-56, 1401-06. Bell posted pictures of himself wearing the same Halloween mask online, he left his DNA in the rape victim's mouth, and police located the Halloween mask and stolen sex merchandise in his business/residence. RP 688-89, 783-84, 866-68, 970-72, 1000, 1003, 1325-31, 1340-44, 1347-

48, 1375, 1401-03, 1417-19, 1482-84, 1489-93; Exhibit 247. B. The State Exercised a Peremptory Challenge Against a Juror Who Admitted He Was Not Paying Attention During Voir Dire.

The State charged Bell with robbery in the second degree, attempted kidnapping in the first degree, rape in the second degree, assault in the second degree, and burglary in the first degree. CP 1-4. His case proceeded to jury trial. CP 212.

During the last round of general voir dire, defense counsel called on a juror and asked for the juror's views on the presumption of innocence. RP 616-17. After that juror responded, defense counsel asked the juror sitting next to him, Juror 39, for his views. RP 617 ("Juror 39, what do you think?"); *see also* RP 564, 626. Juror 39 responded, "I wasn't paying attention. I lost track, What was the question?" RP 617. Defense counsel repeated the question for the juror. RP 617.

Immediately after this round of questioning, the parties began to exercise peremptory challenges. RP 622. The State sought to exercise a peremptory challenge against Juror 39. CP

91. Defense objected under GR 37, noting Juror 39 appeared to be a person of color.[1] CP 91; RP 625-26. The State then explained that the reason for the peremptory challenge was Juror 39's admitted inattention. RP 626-27. The prosecutor explained,

> My concern, obviously, is if he is not paying attention during voir dire to the point that – I think Mr. Tolzin was on Juror 41, but whoever it was, it was right next to Juror 39. Mr. Tolzin was inquiring of the juror right next to Juror 39 . . . . I understand under GR 37 in the past the issues have been, you know, a perception that someone is not paying attention or a perception that someone is disengaged. In this case, this juror overtly said, "I wasn't paying attention," so that's my issue.
>
> RP 626-27.

Defense counsel acknowledged hearing Juror 39's comment about not paying attention. RP 627. Counsel did not

[1]Defense counsel stated, "[Juror 39] is the only person of color who was a male who is actually going to make it onto this panel who is not numerically prohibited from making this jury other than Juror No. 1, who, I believe, is also of Asian descent." RP 631-32. Counsel was likely referring to Juror No. 2, who was "first" on the panel during general voir dire, as Juror No. 1 had already been excused for cause. *See* RP 199-200, 355, 564. Juror No. 2 was seated as a juror in Bell's case. CP 104, 109.

raise GR 37(i) and argue the State failed to give notice of its intent to strike Juror 3 9 for inattention.

The trial court observed that Juror 39 appeared to be a person of color and also confirmed hearing the juror's comment about not paying attention. RP 627-28. The court further noted that Juror 39's comments during voir dire generally "seemed to demonstrate either a confusion about the circumstances that he was being questioned about or inattention." RP 627.

The court reviewed GR 37(i), which provides that if a party intends to offer juror inattention as the justification for a peremptory challenge, "that party must provide reasonable notice to the Court and the other parties so the behavior can be verified and addressed in a timely manner. A lack of corroboration by the judge or opposing counsel verifying the behavior shall invalid[ate] the given reason for the peremptory challenge." RP 630.

The trial court found that "Juror 39's inattention was corroborated by his own acknowledgment, and he even said so.

It's on the record." The judge further recounted his own observations of the juror during voir dire:

> By his own admission, [Juror 39] wasn't paying attention. My observations of him because he's sitting right in the front row is his mind was drifting throughout the questioning. I didn't focus on relentlessly, but, like I said, he is right in front of my field of vision. I did notice that he was potentially staring off and not completely tracking the proceedings.
>
> RP 632.

In addition to corroborating the juror's admitted inattention, the trial court analyzed Bell's objection under GR 37(g). RP 628-29, 632. Based on the total circumstances, the trial court denied Bell's GR 37 objection and allowed the State's peremptory challenge. RP 63 2. Juror 3 9 did not sit on Bell's jury. CP 106.

The jury found Bell guilty of second-degree robbery, second-degree rape, second-degree assault, and first-degree burglary. RP 1660-61. C. The Court of Appeals Reversed Bell's Convictions Due

> to the State's Failure to Give Notice Under GR 37(i).

Bell appealed his convictions and sentence. CP 62. Among other claims, he challenged the trial court's denial of his GR 37 objection. Appx. 1. The Court of Appeals reversed Bell's convictions and remanded for a new trial, because the State did not follow the procedural requirements of GR 37(i) and give "reasonable notice" of its intent to strike Juror 3 9 for inattention. Appx. 1, 6-7. The court did not find an objective observer could view race as a factor in the exercise of the State's peremptory challenge.

The Court of Appeals held,

> GR 37(i) required the State to provide "reasonable notice" to the trial court and Bell "so [juror 3 9' s] behavior [could] be verified and addressed in a timely manner." While juror 39 verified his inattentiveness through his own admission, the State's failure to bring its concerns to the trial court's or defense counsel's attention until after the close of questioning prevented the behavior from being "addressed in a timely manner." GR 37(i). Neither Bell nor the trial court were afforded an opportunity to ask juror 39 about the length, extent, or significance of any inattentiveness. The State failed to follow the requirements of GR 37(i), and this error requires a new trial.

Appx. 6-7. Absent from the court's analysis was any mention of the trial judge's observations which corroborated Juror 39's admitted inattention. *See* RP 632 (trial judge's observations).

The State filed a motion for reconsideration urging the Court of Appeals to apply harmless error analysis. *See* State's Motion for Reconsideration. The court denied the State's motion. Appx. 17.

VI. REASONS REVIEW SHOULD BE GRANTED

A. The Court of Appeals' Decision Conflicts With This Court's Precedent Regarding Harmless Error Review.

The Court of Appeals' decision applying automatic reversal to an alleged procedural violation of GR 37(i) conflicts with this Court's precedent subjecting such errors to harmless error review. This Court should grant review. RAP 13.4(b)(1).

As this Court has recognized, a criminal defendant "is entitled to a trial free of prejudicial error, not one that is totally

error free." *State v. Evans,* 96 Wn.2d 1, 5,633 P.2d 83 (1981); *accord Brown v. United States,* 411 U.S. 223, 231-32, 93 S. Ct. 1565, 36 L. Ed. 2d 208 (1973) (a defendant is entitled to a fair trial, not a perfect one). For this reason, trial errors requiring automatic reversal are "rare and encompass only the most egregious constitutional violations," *i.e.,* those which "deprive defendants of basic protections by which a trial cannot reliably function as a fair determination of guilt or innocence."[2] *In re Pers. Restraint of Lewis,* 200 Wn.2d 848, 857-58, 523 P.3d 760 (2023) (citations and quotation marks omitted). But "most constitutional errors are presumed to be subject to harmless error analysis," *State v. Banks,* 149 Wn.2d 38, 43, 65 P.3d 1198 (2003), and "most such errors are indeed harmless." *State v. Coristine,* 177 Wn.2d 370, 389, 300 P.3d 400 (2013) (Gonzalez,

[2]Examples of errors reqmrmg automatic reversal include "improper courtroom closure, complete lack of counsel, and racial discrimination in grand jury selection," as well as "double jeopardy violations," "failure to require the State to prove its case beyond a reasonable doubt," and "conflict of interest resulting in deprivation of counsel." *In re Pers. Restraint of Meredith,* 191 Wn.2d 300, 309-10 422 P.3d 458 (2018).

J., dissenting) (citing *United States v. Hasting,* 461 U.S. 499, 509, 103 S. Ct. 1974, 76 L. Ed. 2d 96 (1983)).

When, as here, an alleged error involves a court rule, then harmless error analysis applies. *State v. Robinson,* 153 Wn.2d 689, 697, 107 P.3d 90 (2005); *State v. Templeton,* 148 Wn.2d 193, 220, 59 P.3d 632 (2002); *see also State v. Grenning,* 169 Wn.2d 47, 58, 234 P.3d 169 (2010) (violation of a court rule is generally not considered constitutional error for purposes of harmless error analysis); *State v. Scherf,* 192 Wn.2d 350, 375, 429 P.3d 776 (2018) ("A violation of a court rule is harmless if there is no reasonable probability that the error materially affected the outcome of the trial."); *State v. Lupastean,* 200 Wn.2d 26, 53, 513 P.3d 781 (2022) ("There is no longer a presumption of prejudice for nonconstitutional errors, and there is no longer any basis to elevate peremptory challenges over other nonconstitutional trial rights.").

Despite this precedent, the Court of Appeals applied the harshest of remedies-automatic reversal-to a procedural

violation of a court rule. GR 37(i) provides, "If any party intends to offer [juror conduct] as the justification for a peremptory challenge, that party must provide reasonable notice to the court and the other parties so the behavior can be verified and addressed in a timely manner. A lack of corroboration by the judge or opposing counsel verifying the behavior shall invalidate the given reason for the peremptory challenge."

The Court of Appeals reversed Bell's convictions solely because the State did not give formal notice of its intent to strike a juror based on the juror's admitted inattention. Critically, the Court of Appeals did *not* find an objective observer could view race as a factor in the exercise of the peremptory challenge. The court did not even find a lack of corroboration. The court *only* found a violation of the procedural requirement of GR 37(i), which requires notice. Under *Robinson, Templeton,* and the other authorities cited above, harmless error analysis applies to this type of alleged error, and any error here was indeed harmless in light of the

juror's admission and the trial court's corroboration verifying the juror's inattention. The Court of Appeals' decision finding otherwise and holding that violation of GR 37(i) requires reversal conflicts with this Court's binding authority and warrants review under RAP 13. 4(b)(1). B. This Court Should Clarify Whether Automatic

Reversal is Required When an Alleged Error Implicates GR 37 but an Objective Observer Could Not View Race as a Factor in the Exercise of a Peremptory Challenge.

The Court of Appeals' decision in this case demonstrates the confusion among lower courts regarding the effect when an alleged error implicates GR 3 7 but does not violate the substance of the rule. Clarification is needed from this Court. RAP l 3.4(b)(4).

GR 37 is a court rule which "prescribes juror selection procedures" but also "implicates substantial constitutional rights." *State v. Jefferson,* 192 Wn.2d 225, 247, 429 P.3d 467 (2018). The purpose of the rule is to "eliminate the unfair exclusion of potential jurors based on race or ethnicity." GR

37(a). Procedurally, a party or the court may object to the use of a peremptory challenge to raise the issue of improper bias. GR 37(c). The rule then requires the party exercising the peremptory challenge to "articulate the reasons the peremptory challenge has been exercised." GR 37(d). The trial court must then evaluate the justification for a peremptory challenge "in light of the totality of circumstances." GR 37(e). If, after this evaluation, the court determines that "an objective observer could view race or ethnicity as a factor in the use of the peremptory challenge, then the peremptory challenge should be denied." *Id.*

The totality of the circumstances analysis applies to GR 37(i), which concerns peremptory challenges based on juror demeanor or conduct. Again, if a party intends to offer juror conduct or demeanor, such as inattention, as the justification for a peremptory challenge, then that party "must provide reasonable notice to the court and the other parties so the behavior can be verified and addressed." GR 37(i). "A lack of

corroboration by the judge or the opposing counsel verifying the behavior" invalidates the reason given for the peremptory challenge. *Id.*

While GR 37(i) requires the party exercising the peremptory challenge to give reasonable notice, the notice requirement is simply the procedure by which the trial court can ensure the juror's alleged behavior is verified. Notice provides the court and opposing counsel the opportunity to observe the juror, verify the alleged conduct, and address it as needed.

The overall purpose of GR 37(i) is to address instances whereby a party may use juror conduct as a pretext for racial or ethnic discrimination. *See* GR 37(i) (listing examples of juror conduct that have "historically been associated with improper discrimination in jury selection"). To serve this purpose, corroboration of the juror's alleged demeanor or conduct is required. The rule's intent-corroboration-is apparent from the last sentence of GR 3 7 (i), which specifies that the validity of

the reason given for the peremptory challenge hinges on corroboration.[3]

There is a difference between a substantive violation of GR 3 7, where a trial court erroneously allows a peremptory challenge such that an objective observer could view race as a factor in the exercise of the challenge, *see* GR 37(e), and a procedural violation of the rule, which does not implicate the same equal protection and constitutional fairness concerns, *e.g.,* notice under GR 37(i). The former is violative of the spirit and purpose of GR 37, which provides that if the public perceives discrimination in the jury selection process, then reversal is required. *See State v. Tesfasilasye,* 200 Wn.2d 345, 361-62, 518 P.3d 193 (2022); *State v. Lahman,* 17 Wn. App. 2d 925,932,488 P.3d 881 (2021); *accord Rivera v. Illinois,* 556 U.S. 148, 161,

[3]GR 37(i) does *not* say that lack of notice invalidates the reason for the peremptory challenge. This Court presumably could have included such language in the rule but chose not to do so. Based on the plain language of the rule, it is only lack of corroboration which invalidates the given reason for the peremptory challenge.

129 S. Ct. 1446, 173 L. Ed. 2d 320 (2009) (citing *Batson v. Kentucky,* 476 U.S. 79, 86-87, 106 S. Ct. 1712, 90 L. Ed. 2d 69 (1986)).

The latter, however, does not fit within the "narrow" class of per se reversible errors requiring a new trial. Washington courts have found that even in the context of GR 37, automatic reversal is not required when a trial court erroneously denies a peremptory challenge and empanels a juror the defendant attempted to strike from the panel. *See, e.g., State v. Hale,* 28 Wn. App. 2d 619, 622, 641, 537 P.3d 707 (2023), *review denied,* 2 Wn.3d 1026 (2024); *State v. Booth,* 22 Wn. App. 2d 565, 580- 85, 510 P.3d 1025 (2022). This is consistent with *Robinson* and *Templeton* that alleged violations of court rules are subject to harmless error analysis, and with this Court's decision in *Meredith* that a court rule violation involving peremptory challenges does not amount to

"structural" error.[4] *In re Meredith,* 191 Wn.2d at 311-12. An alleged violation of a procedural component of GR 37, such as the notice requirement of GR 37(i), should also be subject to harmless error review.

Here, the Court of Appeals improperly reversed all of Bell's convictions by applying the wrong remedy of automatic reversal. The Court of Appeals appeared to interpret this Court's opinion in *Tesfasilasye* as requiring reversal *whenever* there is a GR 37 violation. Appx. at 5, 7. Such a broad interpretation is inconsistent with this Court's precedent, demonstrates the confusion among lower courts regarding how to apply GR 37, and will lead to further unnecessary conviction reversals on appeal.

[4]It is also consistent with United States Supreme Court precedent. *See Rivera v. Illinois,* 556 U.S. 148, 151-52, 160-62, 129 S. Ct. 1446, 173 L. Ed. 2d 320 (2009) (the erroneous denial of a peremptory challenge is not per se reversible error); *Davis v. Ayala,* 576 U.S. 257, 285-86, 135 S. Ct. 2187, 192 L. Ed. 2d 323 (2015) (holding any constitutional error in excluding defense counsel from part of *Batson* hearing was harmless).

"Upholding fair criminal convictions 'promotes public respect for the criminal process by focusing on the underlying fairness of the trial rather than on the virtually inevitable presence of immaterial error."' *Coristine,* 177 Wn.2d at 388 (Gonzalez, J., dissenting) (quoting *Delaware v. VanArsdall,* 475 U.S. 673, 681, 106 S. Ct. 1431, 89 L.Ed.2d 674 (1986)). Clarifying whether an alleged procedural violation of GR 37 requires automatic reversal is a matter of substantial public interest that warrants review under RAP 13. 4(b)(4). C. Lower Courts Need Guidance Regarding the Proper Appellate Standard of Review for Claims Involving GR 37.

GR 37 does not address the proper standard of review on appeal. In *Tesfasilasye,* this Court applied de novo review to a GR 37 claim and observed that "most courts have effectively applied de novo review because the appellate court 'stand[s] in the same position as does the trial court' in determining whether an objective observer could conclude that race was a factor in the peremptory strike." *Tesfasilasye,* 200 Wn.2d at 355-56

(quoting *Jefferson,* 192 Wn.2d at 250). In that case, "there were no actual findings of fact and none of the trial court's determinations apparently depended on an assessment of credibility." *Id.* at 356.

The Court left open the possibility that a trial court's factual findings under GR 37 may be entitled to deference. *Id.* The Court stated, "[W]e leave further refinement of the standard of review open for a case that squarely presents the question based on a well-developed record." *Id.* at 356. This case is an appropriate vehicle for refining the standard of review under GR 37.

GR 37(i) invites trial courts to make factual findings regarding juror conduct. *See* GR 37(i) ("A lack of corroboration by the judge or opposing counsel verifying the uuror's] behavior shall invalidate the given reason for the peremptory challenge."). If a trial judge's observations can validate or invalidate the given reason for a peremptory challenge, then those observations are entitled to deference. Such deference is

consistent with United States Supreme Court precedent which recognizes the importance of trial court corroboration when analyzing a peremptory challenge based on juror demeanor under *Batson*. *See Thaler v. Haynes,* 559 U.S. 43, 48, 130 S. Ct. 1171, 175 L. Ed. 2d 1003 (2010) (observing "where the explanation for a peremptory challenge is based on a prospective juror's demeanor, the judge should take into account, among other things, any observations of the juror that the judge was able to make during the voir dire.") *Snyder v. Louisiana,* 552 U.S. 472, 477, 128 S. Ct. 1203, 170 L. Ed. 2d 175 (2008) (noting that a trial court has a "pivotal role in evaluating *Batson* claims," and when the explanation for a peremptory challenge "invoke[s] a juror's demeanor," the trial judge's "firsthand observations" are of great importance).

The Court of Appeals here applied strict de novo review and gave no deference to the trial court's factual findings which corroborated the juror's inattention. The trial judge observed Juror 39's behavior during voir dire and found the juror's

behavior matched his admitted inattention. *See, e.g.,* RP 632 ("My observations of [Juror 39] because he's sitting right in the front row is his mind was drifting throughout the questioning … he is right in front of my field of vision. I did notice that he was potentially staring off and not completely tracking the proceedings."). This factual finding is entitled to deference, and such deference validates the State's race-neutral reason for its peremptory challenge. The Court should grant review to provide much needed guidance regarding the appropriate standard of review on appeal. RAP 13.4(b)(4).

VII. CONCLUSION

Review in this matter is warranted under RAP 13.4(b)(1) and (4). For the foregoing reasons, the State respectfully requests this Court grant review of the Court of Appeals' decision in this case. This document is in 14-point font and contains 4,106 words, excluding the parts of the document exempted from the word count by RAP 18.17.

Certificate of Service: The undersigned certifies that on this day she delivered by E-file to the attorney of record for the appellant true and correct copies of the document to which this certificate is attached. This statement is certified to be true and correct under penalty of perjury of the laws of the State of Washington. Signed at Tacoma, Washington on the date below.

5-15-24 *s/Therese Nicholson* Date Signature

This document contains 4248 words, excluding the parts of the document exempted from the word count by RAP 18.17(b).

RESPECTFULLY SUBMITTED this 15th day of May, 2024.

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